

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN COLOMBIA

Complete Community Opposition How-To

*This guide uses the Colombian terms and bodies you'll actually run into — the **licencia ambiental** and the **EIA**, **ANLA**, the **consulta popular** and **consulta previa**, the **tutela** and the **acción popular**, the **Constitutional Court**, the **páramo** protections — and explains each in plain words the first time. Colombia is one of the most dangerous countries in the world for land and environmental defenders, so safety runs through this guide.*

INTRODUCTION & FRAMEWORK

On **26 March 2017**, the small coffee-and-arracacha farming municipality of **Cajamarca, in Tolima**, held a **consulta popular** — a binding popular vote — on whether large-scale mining should be allowed in its territory. The result was overwhelming: **97.92% voted No — 6,165 against, 76 in favour**. With that ballot, a rural community of farmers stopped **La Colosa**, the proposed open-pit gold mine of the South African multinational **AngloGold Ashanti** — a deposit of some 28 million ounces that would have been one of the largest gold mines on Earth. Within weeks the company suspended all activity on grounds of force majeure. Years later, in November 2023, a court reaffirmed the legality of the vote. It was a David-and-Goliath victory — and the community organised it themselves, through the **Environmental and Peasant Committee of Cajamarca and Anaime**, built patiently from 2011 through study, marches, water testing, alliances with lawyers, and a campaign to win a lawful, binding ballot.

The Environmental and Peasant Committee of Cajamarca stopped La Colosa with a binding **consulta popular** — and though that exact tool has since been narrowed, the toolkit it sits within is genuinely strong across Colombia. A large project needs a **licencia ambiental** (environmental licence) from **ANLA** or a regional authority, resting on an **EIA** with public participation. Communities defend their rights through the **tutela** (a fast constitutional action anyone can file) and the **acción popular** (to protect collective rights like a healthy environment), up to the **Constitutional Court**, which has built a powerful body of environmental and rights-of-nature jurisprudence — it has even recognised the **Atrato River itself as a subject of rights**. Ethnic communities hold the right to **consulta previa** (prior consultation). And mining is **banned in páramos**, the high-altitude wetlands that hold the country's water. But these tools have grave limits, and this guide states them plainly. After Cajamarca, the Constitutional Court **narrowed the consulta popular**, ruling that a municipality cannot by itself ban subsurface mining the nation also regulates — so that exact tool is now harder to use, and communities have shifted to other levers. And, gravest of all, **Colombia is routinely the deadliest country on Earth for land and environmental defenders**: people who lead these fights have been threatened and killed. Protest and litigation are lawful — but dangerous, and everything in this guide must be done with that danger foremost: protect your people above any project.

The Whole Strategy in One Idea

A big project looks unstoppable, but it's a chain of approvals, and a chain breaks at its weakest link. A large Colombian project needs its **licencia ambiental** (and a sound **EIA**); it must respect **páramos and protected areas**, and **consulta previa** where ethnic communities are affected; it can be challenged by **tutela** and **acción popular** up to the **Constitutional Court**; and it needs public acceptance. Every one of those is a link you can grab. **Find the one closest to your hand and pull** — and do it safely.

Be Honest About Which Fight You're In

Before you spend a year on this, work out your real situation:

- **If it touches a páramo, a protected area, or an ethnic community's territory, those are hard, sharp levers** — mining is banned in páramos, and consulta previa is a real right.
- **If the licence or EIA is defective, the tutela, the acción popular, and the Constitutional Court genuinely bite.**
- **If you hoped to ban mining by consulta popular, know that the Court has narrowed that tool** — build your strategy on the other levers.
- **Always: this is deadly-dangerous work.** Protect your people, and treat safety as the first requirement, not an afterthought.

Read the whole guide once before you move. Two habits run through it: **use the rights the law gives you** — the EIA participation, the tutela and acción popular, the páramo and consulta-previa protections — and **run every front at once**, safely: the documents, the participation, the courts, the community, the press. That's how Cajamarca won.

HOW THE SYSTEM WORKS

To break the chain you have to see it — who decides, how a project moves, and who's watching.

Who Actually Decides

The core environmental decision is the **licencia ambiental**, granted by **ANLA** (the national licensing authority) for the largest projects, or by a **regional autonomous corporation (CAR)** for others, on the basis of an **EIA** with public participation. Sector ministries grant the mining or energy titles. **Páramos and protected areas** carry hard protection. Where **ethnic communities** (Indigenous or Afro-Colombian) are affected, **consulta previa** is required. Municipal and departmental authorities, and the courts, have their roles. Know which decision you can contest, and aim there.

How a Project Moves — and Where You Jump In

The EIA and participation. The developer prepares the EIA; there's public participation before the licence. *Your opening — and it arms every later step:* take part, put your objections on the record, and insist the participation is genuine.

The licence. ANLA or the CAR grants or refuses the licence. *Your opening:* a licence on a defective EIA, or one that touches a páramo or skips consulta previa, is vulnerable.

Construction and operation. *Your opening:* breaches of the licence, harm to water — enforceable by acción popular and before the authorities.

Follow the Money and the Permissions

Dig up three things. **Who's behind it and who owns them** — including any foreign multinational, whose reputation is a pressure point (AngloGold's was). **What it still needs** — the licence not granted or under challenge, consulta previa not done, financing not closed: whatever's missing is the soft spot. **What water and páramo it touches** — because páramo protection and water are among the hardest levers.

Who's Supposed to Be Watching

Each is an ally or an arena. **ANLA and the CARs** grant and oversee the licence. The **Constitutional Court** has built a powerful environmental and rights-of-nature jurisprudence — the tutela and acción popular reach it. The **Procuraduría** (inspector-general), the **Defensoría del Pueblo** (Ombudsman), and the **Contraloría** oversee the state and protect rights — and the Defensoría also monitors threats to defenders. And Colombia's **environmental committees, peasant and ethnic organisations, and a courageous press** are the forces that reach furthest — as they did at Cajamarca.

QUICK REFERENCE: SUCCESS RATES

Size up the odds honestly. These are rough patterns, not promises. What most moves them: whether a páramo, protected area, or ethnic territory is engaged, whether the licence or EIA is defective, how organised the community is — and, always, whether people can be kept safe.

What you do	Roughly works	How long	Cost/Risk	What "works" means
Just gather documents	5–10%	weeks	low	The base for everything else
Participation / objections in the EIA	15–35%	during licensing	low	On record; conditions or a redo
Tutela (rights violation)	25–50%	weeks–months	low	Fast protection; act suspended
Acción popular (collective rights)	25–50%	months–yr	low	Collective right protected; works halted
Páramo / protected-area lever	35–60%	varies	low–mod	Mining barred where páramo is engaged
Consulta previa (ethnic territory)	30–55%	varies	low	Project stalled for lack of consultation
Constitutional Court action	30–55%	1–2 yr	mod	Licence quashed; strong precedent
Organised community campaign	25–50%	months–yr	high	Pressure; delay; political defeat
Everything together (páramo/ethnic/defective, organised)	40–65%	1–3 yr	mod	Stopped, quashed, barred, delayed
Everything together (state-backed, clean-ish process)	20–45%	1–3 yr	mod	Delayed, conditioned, exposed

The levers that move the needle most are the **páramo/protected-area** and **consulta-previa** protections, the **tutela and acción popular** to the **Constitutional Court**, and an organised community, backed by the press. Cajamarca shows the ceiling (a mining giant stopped) — though its exact tool, the consulta popular, has since been narrowed. So build on the levers that remain, and count a quashed licence, a páramo barred to mining, forced consultation, delay, and exposure as wins.

On cost and safety: participating, documenting, and litigating are cheap, and the tutela is free and fileable by anyone. But this is the deadliest country on Earth for defenders — leaders are threatened and killed — so protect the vulnerable above all, work through organisations and the Defensoría, keep international attention on, and never let a project matter more than a life.

STEP 1: TARGET IDENTIFICATION

Being against "the project" is weak. Being specific — this páramo, this defective licence, this skipped consulta previa — is strong. Answer five questions in writing, safely.

1. What is it, and who's behind it? Name the project, the company, its owners, its financiers — and judge the risks.

2. Where is it, and what does it touch? Map it over **páramos**, water sources, protected areas, **ethnic territories**, and farmland. **A páramo, a protected area, or an ethnic community's territory is your sharpest lever** — mining is banned in páramos, and consulta previa is a hard right.

3. What stage is it at, and what's the next deadline? Is the EIA in participation? Has the licence been granted (opening the tutela and acción popular)? Is consulta previa due? These openings are time-bound.

4. What does it still need that it lacks? The licence not final, consulta previa not done, financing not closed. The missing piece is the soft spot.

5. Who else is affected, and who already opposes it? Neighbouring communities, an environmental committee, peasant and ethnic organisations. Cajamarca built its committee patiently from 2011.

What this looks like in real life. A community learns a mine is planned on its water and near a páramo, with a thin EIA. The five questions yield: a foreign multinational; a páramo and water at stake (the sharp levers); an EIA in participation or a licence pending; a project still needing its licence; and a community to organise into a committee. That's the Cajamarca pattern — build the committee, use the páramo and water levers, and prepare the courts — safely.

STEP 2: DOCUMENTATION

The difference between a community that can fight and one that can't is proof. Build it in three layers — safely.

Layer one: the paper trail. Get the documents the decision rests on — the EIA and the licence and its conditions, the páramo and protected-area maps, any consulta previa record. Colombia's transparency rights let you demand what isn't public. Then read the EIA hard for flaws — an understated impact on water or páramo, an ignored alternative, a páramo brushed over, a consulta previa skipped where ethnic communities are affected.

Layer two: the ground truth. Dated, located photographs and video of the site, the water, the páramo, farmland — baseline images before any damage most of all — and, carefully, the testimony of affected residents. Cajamarca's committee did its own **water testing** — powerful, credible evidence.

Layer three: the map of protection and water. Lay the project over páramos, water sources, protected areas, and ethnic territories, so the hard levers are visible. Walking into ANLA, the courts, or the press with the EIA, the licence, and that map is what makes them act.

WHAT TO GATHER, AND WHERE TO FIND IT

- **The EIA, the licence and conditions, the páramo and protected-area delimitations, any consulta previa record** — from ANLA or the CAR; force out the rest under the transparency rules (8A).
- **Ethnic-territory records** — from the community and the ethnic authorities.

- **Ownership and financing** — company and investor records.
- **The protection-and-water map** — páramos, water, protected areas, and ethnic territories, laid over the project.
- **Dated site evidence and consented testimony** — photographs marked with date and place, water tests, gathered so no one is put at risk.

STEP 3: BUILDING LOCAL OPPOSITION

Documents give you a case; people give you power — and Cajamarca's committee is the model. Build in four moves — and safely.

Start with a tight core. The neighbours most affected, the farmers who know the water and land, a few tireless organisers, and respected local figures.

Build a committee for the long haul. Cajamarca's **Environmental and Peasant Committee** grew over years — study, marches, water testing, and legal alliances. A named, organised, patient committee is the Colombian model, and it can carry a multi-year fight.

Centre ethnic leadership where it applies. Where Indigenous or Afro-Colombian territory and consulta previa are engaged, those communities hold the strongest legal ground; build the campaign around supporting that leadership, at their direction.

Protect people above all. This is the deadliest country for defenders. Build clear roles, a secure shared archive, an inclusive way to decide together, and a serious protection plan — work through organisations and the Defensoría, keep international attention on, and never expose leaders unnecessarily. Safety is the first requirement of every step.

STEP 4: LEGAL CHALLENGES, THE COURTS & PÁRAMOS

Law is one of Colombia's sharpest levers, because the courts — above all the Constitutional Court — genuinely protect environmental and community rights.

Participate First — It Builds the Record

Everything downstream is stronger if you took part in the EIA participation and put your objections on the record. The courts and ANLA review the licence on that record.

The Tutela, the Acción Popular, and the Constitutional Court

Colombia's signature tools are the **tutela** — a fast constitutional action **anyone can file, free**, to protect a fundamental right (a healthy environment, water, health) — and the **acción popular**, to protect **collective rights** like a healthy environment and public spaces. Both can reach the **Constitutional Court**, which has quashed projects, protected páramos, and even recognised rivers as subjects of rights (the Atrato). These are genuinely accessible, powerful levers.

Páramos, Protected Areas, and Consulta Previa

Three hard levers stand out. **Mining is banned in páramos** — the high wetlands that hold Colombia's water — so a project touching one is on very weak ground. **Protected areas** carry strong constraints. And **consulta previa** — prior consultation — is a real right of Indigenous and Afro-Colombian communities that a project cannot lawfully skip. Where any of these is engaged, it is often your sharpest and safest lever.

The Honest Limits — Including on the Consulta Popular

Straight talk: the courts and the páramo and consulta-previa protections are powerful, but the **consulta popular that won Cajamarca has been narrowed** — a municipality can no longer use it alone to ban subsurface mining — so lean on the other levers; litigation is slow; a state-backed project is hard to stop; and the danger to defenders is grave. So use the strong tools — the tutela, the acción popular, the Constitutional Court, the páramo and consulta-previa protections — pair them with the community and the press, protect your people, and count a quashed licence, a páramo barred, forced consultation, delay, and exposure as wins.

TURNING YOUR EVIDENCE INTO ARGUMENTS

A stack of documents wins nothing until you aim it.

A páramo becomes a bar. Not "we oppose the mine" but *"this touches a páramo, where mining is banned — the licence cannot lawfully stand."*

A skipped consulta previa becomes a violation. *"This affects our ethnic territory, and the prior consultation the law requires never happened."*

A defective licence becomes a tutela or acción popular. *"The EIA understated the harm to our water — a threat to our fundamental and collective rights."*

The harm becomes a public story. *"The water our farms and families depend on — risked for a mine we never agreed to."*

Match it to the venue: the objections to ANLA; the rights violation to a tutela; the collective right to an acción popular; the páramo and consulta previa to the Constitutional Court; the human and water story to the press.

STEP 5: MEDIA STRATEGY

In Colombia, public attention is a real lever — Cajamarca became a national symbol — and, where defenders are at risk, a measure of protection. A courageous press and strong community and ethnic organisations make the media front central, handled with care.

Lead with water and people, not procedure. Not "the licence was deficient" but "the water our farms and families depend on, risked for a mine we never agreed to." Use your strongest material: dated photographs, water tests, the map of the project over the páramo and water, community voices, and any court win banked.

Work several audiences at once. Local and national press build the campaign; ethnic and environmental networks amplify; international media and human-rights networks reach the foreign multinational and help protect people. Make it easy: captioned photos, accurate summaries, a map, strong interviews.

Two hard rules. Accuracy above all — one exaggeration can discredit everything. And protect people — this is the deadliest country for defenders, so weigh every public act, keep international attention on, and let the community lead its own story.

EMAILS & LETTERS

Make them your own; keep them factual and calm; keep copies; and protect anyone at risk.

8A — Transparency request (to ANLA / the CAR).

Subject: Solicitud de información — [proyecto].

"We, residents of [place], request the EIA, the licencia ambiental and its conditions, the páramo and protected-area delimitations, and any consulta previa record for [project] at [location]. [Contact.]"

8B — Objection in the EIA participation.

Subject: Objeción — licencia ambiental de [proyecto].

"We, residents of [place], object to [project]: [it touches a páramo where mining is banned; the EIA understates the harm to our water; consulta previa was skipped]. We ask that the licence be refused. [Attach evidence.]"

8C — Tutela (to a lawyer, or filed directly).

Subject: Acción de tutela — [proyecto].

"We seek a tutela because [project] imminently threatens our fundamental rights to [a healthy environment / water / health]: [specifics]. We ask the court to protect our rights and suspend the act. [Attach evidence.]"

8D — Acción popular.

Subject: Acción popular — [proyecto].

"We bring this acción popular to protect the collective right to a healthy environment, threatened by [project]: [specifics]. [Attach evidence.]"

8E — To the Defensoría del Pueblo / Procuraduría.

Subject: Queja — [proyecto] en [lugar].

"We ask you to examine [project], which [touches a páramo / skips consulta previa / threatens our water], and [any threats to community members]. [Attach evidence.]"

8F — To a foreign multinational or financier.

Subject: Environmental, rights, and reputational risk in [project].

"We understand your company is [behind / financing] [project] at [location], which touches a páramo, threatens our water, and faces legal challenge. As with La Colosa, this carries real risk. [Contact and evidence summary.]"

8G — Letter to the press.

Subject: [Community] moves to protect its water and páramo from [project].

"For generations the people of [place] have farmed by [our water], fed by [the páramo]. Now [project], by [company], threatens it. We can provide photographs, water tests, a map and — carefully — interviews. [Contact.]"

8H — Rallying the community (safely).

Subject: We can protect our water — here's how.

"[Project] threatens [our water / páramo]. At Cajamarca, farmers built a committee and stopped one of the world's biggest gold mines. With the páramo protection, the tutela and acción popular, the courts, and a committee behind us, we have a real chance. Please join us — carefully, protecting one another. [Contact.]"

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

If you must move fast and lean, do these six things, in order, and safely:

1. **Nail down the project and its footprint, and look for the hard levers.** A páramo, a protected area, or an ethnic territory is your sharpest.
2. **Object in the EIA participation (8B), and file a tutela if a right is threatened (8C).**
3. **Request the documents (8A), and read the EIA for páramo, water, and consulta-previa flaws.**
4. **Photograph everything, with dates and places, safely — and do your own water testing.**
5. **Bring an acción popular for the collective right (8D), and involve the Defensoría (8E).**
6. **Build a committee and go public (8G/8H) — and protect your people above all.**

Even lean, those six use the hard levers, the free courts, and the committee — while keeping people safe.

WHEN THE SYSTEM IS TILTED

Colombia's tools are real, but the field can be tilted, and the danger is grave.

When the state backs the project. Even a national-priority project with a mining giant behind it has fallen — Cajamarca. Use the páramo, consulta-previa, and court levers, build the committee, and reach the multinational's reputation.

When the consulta popular is closed to you. The Court narrowed it. Don't rely on it to ban mining — build on the tutela, the acción popular, the páramo protection, and consulta previa.

When participation is a formality. Document the flaw; it strengthens the tutela and acción popular.

When defenders are targeted — the gravest tilt. This is the deadliest country for defenders. Take every threat seriously, protect the vulnerable, work through the Defensoría and organisations, keep international attention on, and never let the project matter more than a life.

WHEN IT'S ACTUAL CORRUPTION — AND WHO'S CAPTURED

Colombia has real problems with the capture of licences and the closeness of powerful interests to decisions, so this matters — handled with care given the danger.

How to spot it. Licences against the evidence or over a páramo; an EIA written for the proponent; consulta previa faked or skipped; benefits to the connected while the community carries the harm.

Who's supposed to guard against it. The **Procuraduría** and the **Fiscalía** handle official misconduct and graft. The **Contraloría** examines public money. The **Defensoría del Pueblo** protects rights and monitors

threats. The **Constitutional Court** can quash a tainted licence. And Colombia's **investigative press** has exposed captured projects.

How to fight it safely. Document precisely and factually — how the process was bent, who benefits, what the law required — and keep clear the line between what you can prove and what you suspect. Don't make public accusations you can't back; the danger of retaliation is real and grave. Route serious evidence to the Procuraduría, the Fiscalía, the Defensoría, and trusted journalists, protect witnesses, and pair the exposure with the legal challenge.

INTEGRATION & TIMELINE

Don't run these steps one after another — run them together, safely. The documents build your proof; the páramo, water, and consulta-previa levers aim it; a committee is the muscle; the tutela, the acción popular, and the Constitutional Court press the case; the media raises the cost and protects your people. Together they multiply. One at a time, they stall.

Early on (weeks 1–8): nail down the project and the páramo, water, and ethnic territory it touches; object in the EIA; file a tutela if a right is threatened; request the records; photograph the baseline and test the water; build a committee — safely, with a protection plan.

In the thick of it (months–years): bring an acción popular and, where warranted, a Constitutional Court action; press the páramo and consulta-previa levers; involve the Defensoría; open the media front — carefully.

The long haul (years): carry the litigation; keep the committee and the attention alive; hold the line for a quashed licence, a páramo barred, forced consultation, delay, or an outright stop — and keep your people safe throughout.

FINAL ASSESSMENT

Stopping a destructive project in Colombia can be done — farmers in Cajamarca built a committee and stopped one of the largest gold mines on Earth. Hold both truths. Colombia's tools are strong: an environmental-licence system with participation; the free, accessible tutela and acción popular; a Constitutional Court with powerful environmental and rights-of-nature jurisprudence; the ban on mining in páramos; and consulta previa for ethnic communities. And the constraints are real: a narrowed consulta popular, slow litigation, state-backed projects — and, gravest of all, the deadliest conditions on Earth for the defenders who lead these fights.

Here's the discipline that wins. Find the hard levers — the páramo where mining is banned, the ethnic territory that triggers consulta previa, the water — and pry loose the EIA and the licence. Take part, and file a tutela or acción popular to reach the Constitutional Court. Build a patient committee, as Cajamarca did, do your own water testing, and carry the story to the country and the world. And above all, protect your people — because in this country, more than almost anywhere, the fight for the land is a fight people have died for. Count a quashed licence, a páramo barred, forced consultation, delay, and exposure as wins alongside an outright stop. That's what Cajamarca did — the committee, the ballot, and the courts together. So can you — safely.